

VENCI00555357 OPV Coalition et al vs Fox Canyon Groundwater Management Agency et al

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-07-10

Motion: CMC

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Tentative Ruling: OPV Coalition et al vs Fox Canyon Groundwater Management Agency et al

Case Number

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Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 07/10/2026 - 15:00

Nature of Proceedings

CMC

Tentative Ruling

On calendar for July 10, 2026, at 3 p.m. is a case management conference (CMC). The following parties have filed case management statements in advance of this CMC: (1) plaintiffs OPV Coalition, et al. (filed June 26); (2) City of Camarillo and Camrosa Water District (collectively, Camarillo, filed June 25); (3) United Water Conservation District (UWCD, filed June 25); (4) City of Oxnard, Marathon Land, Inc., Fox Canyon Groundwater Management Agency (FCGMA), and California-American Water Company (collectively, Oxnard Defendants, filed June 25); and (5) Borchard Family Defendants, et al. (collectively Borchard Defendants, filed June 26). On June 30, the United States filed a joinder to plaintiffs' CMC statement. On July 2, the City of Oxnard filed a supplemental CMC statement, and A&R 1995, LLC, et al. (collectively, Landowner Group) filed a partial joinder in the plaintiffs' and Borchard Defendants' CMC statements. Also on July 2, plaintiffs filed a joint comment on relief. On July 6, plaintiffs filed a supplemental statement.

The following issues are raised in these CMC statements:

(1) Phase 2 Sequencing

The court previously identified that Phase 2 of trial would “adjudicate all claimed rights to use groundwater in the Oxnard Basin and the Pleasant Valley Basin, including any federal reserved water right claims.” (Minute Order, June 7, 2024, p. 7.)

Plaintiffs report that the parties are working to identify and narrow the disputed Phase 2 issues. Plaintiffs are hoping to work towards a comprehensive allocation plan that would be included in revised allocation ordinances. City of Oxnard, and perhaps others, will seek prescriptive rights in Phase 2, but the scope of such claims is not sharply defined. UWCD claims water developed in the Basins; plaintiffs make no claim to property rights in such water, but seek an allocation that reflects their predictable ability to continue to use water; other parties’ positions are not fully expressed. The United States needs its water to keep operations going at its facilities. Plaintiffs oppose sub-phasing in Phase 2 to try the federal reserved rights issue first.

Camarillo reports that the next hearing with Special Master Beckloff is set for July 21, 2026. Camarillo suggests that these issues be raised first with the Special Master and that the court defer ruling on potential sub-phasing.

UWCD reports that it unsuccessfully sought to add phasing issues to a hearing with the Special Master in advance of this CMC, but instead phasing issues will be part of the July 21 agenda. The Special Master should be able to provide a recommendation in advance of the August 21 CMC. UWCD also reports concern about the status of a revised ordinance by FCGMA.

The Oxnard Defendants propose a sequence of sub-phases for Phase 2, including particularly, the issue of water claimed by the United States. The Oxnard Defendants propose working with the Special Master to develop a proposed final Phase 2 schedule.

The Borchard Defendants largely join plaintiffs’ recommendations.

The United States joins plaintiffs’ recommendations, particularly opposing for the present any sub-phasing of the United States’ claims.

The City of Oxnard supplements its joint statement by proposing that the phasing issues be addressed to the Special Master in the first instance.

The Landowner Group joins in plaintiffs’ recommendations except as to the suggestion that the Las Posas case serve as a model to the issues presented here.

The court appreciates the various suggestions made by the parties. The court finds that any decision as to whether sub-phasing would be appropriate is premature. Guiding this decision is the fact that allocation is fundamentally a zero-sum proposition so that any determination of part of the allocation scheme necessary affects the undetermined part of the allocation scheme. That does not mean that the earlier determination of discrete issues may not be both efficient and desirable; it does mean that what issues to determine, and when, is best considered as part of the plan for the entire resolution of Phase 2.

The court remains hopeful that Phase 2 issues may be resolved or simplified by agreement. To the extent matters must be decided by trial, all parties benefit from an early and clear articulation of what issues must be decided. The court very much appreciates the recommendations of the Special Master as to the most efficient manner to address these matters.

(2) Phase 2 Trial Date

The parties suggest that the court should set a Phase 2 trial date in late 2027 or early 2028. Insofar as the Phase 2 trial date depends in large part upon the discovery and mediation schedule anticipated by the Special Master, the court will defer addressing this issue until the next CMC so that the Special Master may provide a recommendation as to timing.

(3) Discovery

The parties generally agree that the discovery stay will need to be lifted in connection with a Phase 2 discovery plan. The parties look to working with the Special Master. The court will address this issue with the recommendation of the Special Master at the next CMC.

(4) Technical Report

Effective January 1, 2026, the Legislature made certain amendments to the groundwater adjudication statutes, including adding:

“(1) In any adjudication in a basin in which one or more groundwater sustainability agencies have adopted a groundwater sustainability plan that has been approved by the Department of Water Resources, the court shall request that the groundwater sustainability agency provide a technical report, if the agency is able to do so at a reasonable effort and expense. The report shall, at a minimum, quantify and describe the groundwater use of parties that have not otherwise appeared before the court. The groundwater sustainability agency may include in the report, but is not limited to, parties excused or treated separately pursuant to subdivision (d) of Section 833, parties for which the court lacks jurisdiction, and parties that have been, or it is anticipated may be, found in default by the court. The groundwater sustainability agency may provide the report at its own election, and may include areas outside of its jurisdictional boundary if another groundwater sustainability agency in the basin is unable or unwilling to provide a report.

“(2) A groundwater sustainability agency that provides a report pursuant to paragraph (1) shall not be entitled to a fee for its services, but shall be paid or reimbursed the total expense incurred by the agency, including salaries, wages, traveling expenses, and all costs of whatsoever character are properly chargeable to providing the report. The court shall apportion the total expenses reimbursable to the groundwater sustainability agency for providing the report among the parties in an amount, and in a manner, that the court deems equitable.

“(3) During the pendency of the report provided pursuant to paragraph (1), upon a noticed motion by a groundwater sustainability agency, and following a hearing by the court after at least 10 days' notice to the parties, the court may order such interim or partial payments of the expense to be made by the parties.

“(4) A report provided by a groundwater sustainability agency pursuant to paragraph (1) shall be prima facie evidence of the physical facts found in the report, but the court shall hear evidence that may be offered by any party to rebut the report or the prima facie evidence.” (Code Civ. Proc., § 845, subd. (d).)

FCGMA reports that section 845, subdivision (d) applies because FCGMA has adopted, and the Department of Water Resources (DWR) has approved, groundwater sustainability plans for both the Oxnard and Pleasant Valley Basins. FCGMA also reports that it would be able to prepare the technical report at a reasonable effort and expense. FCGMA requests that the court order FCGMA to provide a technical report pursuant to section 845, subdivision (d)(1). FCGMA's request is expressly supported by the other Oxnard Defendants, by plaintiffs, and by Camarillo. The request is proper under section 845, subdivision (d), and no party has stated opposition. The request will be granted. The court will not now set a deadline for completion of the report, but encourages FCGMA to work expeditiously and will revisit the deadline issue later if warranted.

(5) Other Issues

Plaintiffs report the status of the Special Master's technical consultant's work. Plaintiffs state that they intend to request the court expand the Special Master's use of technical consultants. Any such request should be made to the Special Master for his recommendation.

The court now has on calendar the next CMC on August 21, 2026, at 3 p.m. The parties should be prepared to discuss whether additional CMCs should be set now or at the next CMC.

Judges

Judge Donna D. Geck

Dept. 4 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

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